

25SMCV03591 25SMCV03591

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TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

July

21, 2026

CASE NUMBER

25SMCV03591

MOTION

Motion

for Leave to Amend Complaint

MOVING PARTIES

Plaintiffs

Green Life 555 Group Inc. and Ran Ryan Noy

OPPOSING PARTY

Defendant

General Motors

MOTION

This case arises from allegations that Defendant sold Plaintiffs a defective 2023 Cadillac Lyriq and refused to repair or replace it, in violation of the Song-Beverly Act, the Magnuson-Moss Act, and the parties' written contract.

Plaintiffs Green Life 555 Group Inc. and Ran Ryan Noy ("Plaintiffs") originally filed suit on July 14, 2025. The operative First Amended Complaint ("FAC"), filed eleven days later, is brought against Defendant General Motors LLC ("Defendant" or "GM") and alleges five (5) causes of action for violations of the Song Beverly Act; a sixth (6) cause of action for violation of the Magnuson-Moss Warranty Act; and a seventh (7) cause of action for breach of written contract.

Plaintiff now moves for leave to file a Second Amended Complaint ("SAC"), deleting the seventh cause of action for breach of written contract, and adding five new causes of action for (7) fraud; (8) negligent misrepresentation; (9) violation of the Automotive Consumer Notification Act and Lemon Law Buyback Disclosure Requirements; (10) reformation, revision, and declaratory relief; and (11) revocation of acceptance, rescission, cancellation, and restitution, as well as revising various factual allegations.

GM opposes the motion and Plaintiff replies.

LEGAL

STANDARD

Amendments

to Pleadings: General Provisions

Under Code of Civil Procedure

section 473, subdivision (a)(1), "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may

likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

To wit, without notice to the other party the Court has wide discretion to allow either party (i) to add or strike the name of a party or (ii) to correct a mistake in the name of a party or a mistake in any other respect “in furtherance of justice” and “on any terms as may be proper.” (See Code Civ. Proc., § 473, subd. (a)(1); see also *Marriage of Liss* (1992) 10 Cal.App.4th 1426, 1429.) Alternatively, after notice to the other party, the Court has wide discretion to allow either party to amend pleadings “upon any terms as may be just.” (See Code Civ. Proc., § 473, subd. (a)(1). Similarly, Code of Civil Procedure section 576 states “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.”

Judicial policy favors resolution of all disputed matters between the parties and, therefore, leave to amend is liberally granted. (*Berman vs. Bromberg* (1986) 56 Cal.App.4th 936, 945; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 [this has been an established policy in California since 1901] (citing *Frost v. Whitter* (1901) 132 Cal. 421, 424; *Thomas v. Bruza* (1957) 151 Cal.App.2d 150, 155).) The Court of Appeal in *Morgan v. Superior Court* held “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530, citations omitted.) Moreover, “it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [opposing party did not establish harm by the delay in moving to amend the complaint].)

“The court may grant leave to amend the pleadings at any stage of the action.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 6:636 (hereafter Weil & Brown).) Denial of a motion to amend is rarely justified if the

motion is timely made and granting the motion will not prejudice the opposing party. (Id. at ¶ 6:639, citations omitted.) However, if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (Id. at ¶ 6:655, citations omitted. Absent prejudice, any claimed delay alone is not grounds for denial. “If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (Id. at ¶ 6:653 (citing *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565).) “Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. . . . But the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider.” (Weil & Brown, *supra*, at ¶ 6:656, citations omitted.)

“Even if some prejudice is shown, the judge may still permit the amendment but impose conditions, as the Court is authorized to grant leave ‘on such terms as may be proper.’” (Weil & Brown, *supra*, at ¶ 6:663, citation omitted.) For example, the court may cause the party seeking the amendment to pay the costs and fees incurred in preparing for trial. (Id. at ¶ 6:664 (citing *Fuller v. Vista Del Arroyo Hotel*, 42 Cal.App.2d 400, 404).)

California

Rules of Court, rule 3.1324: Procedural Requirements

Pursuant to California Rules of Court, rule 3.1324(a), a motion to amend a pleading before trial must:

“(1) Include a copy of the proposed amendment or amended pleadings, which must be serially numbered to differentiate it from previous pleadings or amendments;

(2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and

(3) State what allegations are proposed to be added to the previous

pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

In addition, under Rule 3.1324(b), a motion to amend a pleading before trial must be accompanied by a separate declaration that specifies the following:

“(1) the effect of the amendment;

(2) why the amendment is necessary and proper;

(3) when the facts giving rise to the amended allegations were discovered; and

(4) the reasons why the request for amendment was not made earlier.”

DISCUSSION

Plaintiff has attached both clean and red-lined copies of the proposed SAC, demonstrating all proposed changes. Further, the Declaration of Ran Ryan Noy provides as follows:

6. Effect of the Amendment (CRC 3.1324(b)(1)): The proposed Second Amended Complaint clarifies and streamlines Plaintiffs' existing Song-Beverly Act theories under Civil Code § 1795.5 to reflect the used-vehicle posture of this case. It also adds new causes of action for Fraud, Negligent Misrepresentation, and violations of Civil Code §§ 1793.23 and 1793.24. It also updates the caption to reflect the addition of Shanee Cohen as co-counsel and the removal of prior attorney Delina Yasmeh.

7. Why the Amendment is Necessary and Proper (CRC 3.1324(b)(2)): This amendment is necessary to conform the pleadings to the facts discovered during the initial stages of discovery regarding GM's Lemon Law Buyback disclosures and previously undisclosed repair history, specifically Job Card 445941. It also properly alleges all applicable causes of action proper under the original pleaded facts and the newly discovered facts. Permitting this amendment is proper to promote judicial economy by allowing all related claims arising from the same vehicle purchase and repair history to be adjudicated in a single action.

8. When the Facts Were Discovered and Why the Request Was Not Made Earlier (CRC 3.1324(b)(3)-(4)): Plaintiffs filed their First Amended Complaint as a matter of right prior to serving Defendant. The facts giving rise to the newly added fraud and misrepresentation allegations—specifically the omissions in the buyback disclosure and prior repair records—were not fully known at the outset of the litigation and were only confirmed during the recent initial discovery phase and review of GM's internal records. Therefore, this request could not have been made earlier. As to the new causes of action, the Song-Beverly Act and recent case law, together with the facts of this case required a deeper investigation and analysis to determine a more appropriate path for a recovery to Plaintiffs. After extensive legal research, Plaintiffs now do not expect a new amendment past the proposed Second Amended Complaint.

(Noy
Decl. ¶¶ 6-8.)

In opposition, GM argues that the 11-month delay in moving for leave to amend is unreasonable, as Plaintiffs should have been aware of these claims at the time they purchased the vehicle. But Plaintiffs have adequately explained the delay. Further, absent prejudice, any claimed delay alone is not grounds for denial. “If the delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case even if sought as late as the time of trial. (Weil & Brown, *supra.*, at ¶ 6:653 (citing *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565).)

GM also argues that it will be prejudiced if Plaintiffs are now allowed to drastically expand the scope of this case. “But the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider.” (Weil & Brown, *supra.*, at ¶ 6:656, citations omitted.)

Finally, GM argues that the amendment would be futile because the named purchaser is the entity Green Life 555 Group Inc., whereas the Song-Beverly Act protects only individuals who buy consumer goods used “primarily for personal, family, or household purposes.” (Civ. Code, § 1791, subd. (a) &

(b.)

With respect to Defendant's arguments about the merits of the proposed amended complaint, the Court will generally not consider the merits of the proposed amendment in determining whether to grant leave to amend. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048 ["the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings"].)

CONCLUSION AND ORDER

Finding the motion procedurally and substantively proper, the Court grants Plaintiffs' motion for leave to amend the complaint, and orders Plaintiffs to file and serve the proposed Second Amended Complaint on or before August 4, 2026.

Further, the Court will enter the proposed Order lodged on June 15, 2026 in conformity with the ruling.

Plaintiffs shall also provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 21, 2026 ____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court